

DEPARTMENT OF VETERANS AFFAIRS

EDUCATION BENEFITS CLAIMS PROCESSING — CHAPTER 33

FORMAL REQUEST FOR ENTITLEMENT RECALCULATION

Pursuant to *Rudisill v. McDonough* (38 U.S.C. § 3327 / 38 U.S.C. § 3695)

Case / File Metadata	Detail
Date	August 5, 2026
Veteran Name	Justin M. Cabrera
VA File No. / SSN	586-88-3260
Claim Type	Education Benefits (Post-9/11 GI Bill)
Reference Document	Ask VA Inquiry #A-20260718-3095945 (DD-214 Submitted July 18, 2026)

1. PURPOSE OF REQUEST

I am formally requesting an administrative re-adjudication of my Post-9/11 GI Bill (Chapter 33) entitlement based on the Supreme Court ruling in *Rudisill v. McDonough*, 601 U.S. 294 (2024).

Key Finding: My current Certificate of Eligibility (dated July 23, 2026) reflects a remaining balance of **4 months and 17.5 days** under a single 36-month entitlement cap. Because I completed multiple separate, qualifying periods of active-duty service, I am legally entitled to aggregate benefits up to the **48-month statutory maximum** under 38 U.S.C. § 3695.

2. QUALIFYING ACTIVE DUTY SERVICE PERIODS

As documented on my official DD-214 records currently on file with the VA Regional Office:

Service Period	Begin Date	End Date	Creditable Days
First Active Service Period	08/15/2006	01/14/2011	1,614 Days
Second Active Service Period (Title 10 Mobilization)	10/11/2019	06/04/2020	238 Days
Additional Active Duty Period	08/09/2020	09/05/2020	28 Days
Total Creditable Service			1,880 Days

3. LEGAL RATIONALE & REMEDY REQUESTED

Under *Rudisill v. McDonough*, Veterans with multiple distinct periods of qualifying active-duty service who establish entitlement under both Chapter 30 (Montgomery GI Bill) and Chapter 33 (Post-9/11 GI Bill) are not restricted to a single 36-month limit if they have unused entitlement from prior service.

Requested Action:

1. Re-evaluate my Chapter 33 entitlement using both qualifying active-duty service periods.

2. Adjust my total aggregate entitlement up to the **48-month maximum allowable cap**.

3. Issue an updated, official **Certificate of Eligibility (COE)** reflecting the additional entitlement months.

4. ATTACHMENTS

- Copy of DD-214 (Active Duty Period: Oct 11, 2019 – Jun 04, 2020)
- Copy of Certificate of Eligibility dated July 23, 2026

Veteran Signature: /s/ *Justin M. Cabrera*

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